

24STCV31841 24STCV31841

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-01

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Case Number: 24STCV31841 Hearing Date: July 1, 2026 Dept: 735

Solorio v. General Motors, LLC

Defendant GM's Demurrer to First Amended

Complaint and Motion to Strike

BACKGROUND

This is a lemon law action arising out of the purchase of a 2016 GMC Sierra 1500 Denali, manufactured and distributed by Defendant. Plaintiff brings this action for violations of the Song-Beverly Act and fraudulent concealment.

DISCUSSION

Demurrer

Statute of Limitations

Defendant asserts that the cause of action for fraud is barred by the three-year statute of limitations. Plaintiff alleges the defective vehicle was purchased on June 30, 2016. Plaintiff filed suit on December 4, 2024. A demurrer lies where the dates alleged in the complaint show “clearly and affirmatively” that the action is barred by a statute of limitations. It is not enough that the complaint shows that the action may be barred. Here, Plaintiff alleges Plaintiff could not have reasonably discovered Defendant's concealment of the vehicle defects or Defendant's breach of its warranty obligations while they were still attempting to have Defendant honor its warranty. Accordingly, the complaint is not clearly and affirmatively barred by the statute of limitations. The demurrer cannot be

sustained on this basis.

Fraudulent Concealment

Defendants demur to the fifth cause of action for fraudulent concealment on the ground that it fails to allege sufficient facts. The Court of Appeal in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 addressed issues almost identical to those in this demurrer. The appellate court found that the following allegations were sufficient to state a cause of action for fraud: “plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.” (Id. at 844.) Plaintiff has alleged analogous facts here.

Defendant asserts that the Supreme Court ruling in *Rattagan v. Uber Technologies* (2024) 17 Cal.5th 1 requires a different result. Specifically, Defendant contends that *Rattagan* requires the Plaintiff allege a direct dealing or relationship between the parties in order to establish a duty to disclose for a fraudulent concealment claim. Defendant asserts that Plaintiff has not done so here. But Plaintiff alleges that Plaintiff entered into a warranty contract with Defendant. That allegation is sufficient to create a direct transactional relationship.

Defendant also argues that under *Rattagan*, Plaintiff cannot allege the fraud claim arises independently from the contractual relationship, thus barring the claim. The Court disagrees. Plaintiff alleges Defendants concealed material facts in order to induce Plaintiff to purchase the vehicle. These facts amount to fraudulent concealment regardless of the parties’ contractual relationship. The demurrer to the cause of action for fraud is overruled.

Motion to Strike

Defendant moves to strike Plaintiff’s claims for punitive damages. As Plaintiff has sufficiently alleged a cause of action

for fraud, Plaintiff has alleged entitlement to punitive damages. The motion to strike is denied.

CONCLUSION

The Court overrules Defendant's demurrer. Defendant shall file and serve its answer within 10 days.

The Court denies Defendant's motion to strike.

Defendant shall give notice.